

LAW STICKER AI

Osmania University – LL.B. (3-YDC) | 4th Semester

INTERPRETATION OF STATUTES

UNIT V

Repeals, Amendments & Subordinate Legislation

Effect of Repeal | Amendments | Parent vs. Subordinate Legislation | Substantive vs. Procedural Law

Paper III | Target: 75+ Marks | All Three Parts Covered | FINAL UNIT

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UNIT V — OVERVIEW

What IS in Unit V vs. What is NOT

IN This Unit (Unit V)	NOT In This Unit
Effect of Repeal — Section 6 GCA	Mischief / Golden / Literal Rules (Unit II)
Effect of Amendments	Penal / Taxing / Beneficial Construction (Unit III)
Implied Repeal	External & Internal Aids (Unit IV)
Parent vs. Subordinate Legislation	Definitions of Statutes (Unit I)
Substantive vs. Procedural Law	General Principles of Interpretation (Unit I)
Retrospective Operation of Statutes	Classification of Statutes — basic (Unit I)

Predicted Questions (Based on Past Papers 2018–2025)

Type	Predicted Question	Stars
Part A	Effect of Repeal / Implied Repeal	★★★★★★
Part A	Retrospective Operation of Statutes	★★★★★★
Part A	Substantive Law and Procedural Law	★★★★★★
Part A	Parent Legislation / Subordinate Legislation	★★★★★★
Part A	Amendments / Effect of Amendments	★★★★★☆
Part B	Effect of Repeal — Section 6 GCA — full essay	★★★★★★
Part B	Conflict between parent legislation and subordinate legislation — how resolved?	★★★★★★
Part B	Distinction between substantive and procedural law interpretation	★★★★★★
Part C	Repeal mid-trial — pending criminal proceedings — effect?	★★★★★★
Part C	Probation of Offenders Act after conviction — ex post facto challenge	★★★★★★
Part C	Control Act repealed & re-enacted without modification — effect on old orders?	★★★★★★
Part C	Mobile phone while driving — mens rea / checking time defence	★★★★★☆

Critical Anchors for Unit V

- Section 6 GCA is the ANCHOR provision of this entire unit — memorise all 5 savings it provides.
- The 'repeal mid-trial' problem appears in 4 out of 8 past papers — master the IRAC.
- The 'control Act repealed and re-enacted' problem (Jul/Aug 2019 Q16) is a classic — answer using Section 6A GCA.

- Implied repeal requires two conditions: (1) later Act covers same field; (2) irreconcilable inconsistency.
- Retrospective vs. Prospective — constitutional anchor is Article 20(1) for penal statutes.
- Substantive vs. Procedural law — procedural statutes CAN be retrospective; substantive statutes CANNOT (without express words).
- Parent legislation always overrides subordinate legislation — five methods of conflict resolution.

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. Each carries 6 marks. Write 1.5 to 2 pages per note.

1. Effect of Repeal — Section 6, General Clauses Act, 1897 ★★★★★

Definition

Repeal is the abrogation of an existing statute by a later Act of Parliament. When a statute is repealed, questions arise about the fate of rights accrued, liabilities incurred, proceedings pending, and acts done under the repealed Act. Section 6 of the General Clauses Act, 1897 is the primary statutory answer to these questions — it provides a comprehensive set of savings that operate automatically whenever a Central Act is repealed.

Section 6 GCA — Five Savings on Repeal

Where a Central Act is repealed, unless a different intention appears, the repeal shall NOT affect:

- Saving 1 — Previous Operation: The previous operation of the repealed Act, or anything duly done or suffered thereunder. Acts done under the Act before repeal remain valid.
- Saving 2 — Accrued Rights: Any right, privilege, obligation, or liability already acquired, accrued, or incurred under the repealed Act. These survive the repeal.
- Saving 3 — Pending Investigations/Legal Proceedings: Any investigation, legal proceeding, or remedy in respect of such right, privilege, obligation, or liability. Pending cases continue.
- Saving 4 — Penalties and Punishments: Any penalty, forfeiture, or punishment incurred in respect of any offence committed against the repealed Act. Punishments already imposed or offences committed remain enforceable.
- Saving 5 — Commenced Proceedings: Such investigation, legal proceeding, or remedy may be instituted, continued, or enforced — and any penalty, forfeiture, or punishment may be imposed — as if the repealing Act had not been passed.

Key Points

- Section 6 applies automatically — it does not need to be expressly invoked, unless the repealing Act expressly excludes it.
- Section 6 applies only to Central Acts — not State Acts (unless the State's General Clauses Act has a similar provision).
- Section 6A: If the repealing Act is itself repealed, the original Act is NOT thereby revived — repeal of repeal does not revive.
- A 'saving clause' in the repealing Act can provide additional protection beyond Section 6.
- Section 6 does not apply where the repealing Act itself provides a comprehensive transitional scheme.

📌 **Example:** The Prevention of Corruption Act 1947 is repealed and replaced by the PC Act 1988. Under Section 6 GCA: a trial pending under the 1947 Act continues; a conviction already pronounced under the 1947 Act remains valid; rights accrued to a prosecution witness are preserved.

⚖️ **Case:** State of Punjab v. Mohar Singh Pratap Singh (1955): The Supreme Court held that Section 6 GCA saves pending proceedings on repeal — the trial of an accused for an offence under a repealed Act continues as if the Act had not been repealed.

⚖️ **Case:** Kolhapur Canesugar Works v. Union of India (2000): The Supreme Court held that Section 6 GCA saves liabilities incurred under a repealed Act — a tax liability that had crystallised before repeal survived the repeal of the taxing statute.

📌 **KEY RULE:** Section 6 GCA = 'Repeal kills the statute — not its effects.' 5 savings: Previous operation, Accrued rights, Pending proceedings, Imposed penalties, Commenced investigations. ALL survive unless the repealing Act says otherwise.

💡 **TIP:** Appeared as Part A in Aug/Sep 2024, Jul/Aug 2025, Aug/Sep 2018, Dec 2020, Jul/Aug 2019.

Also the anchor for every 'repeal mid-trial' Part C problem. The 5 savings MUST be listed verbatim in every answer on repeal.

2. Effect of Amendments ★★★★★

Definition

An amendment is a modification of an existing statute — adding to, deleting from, or substituting provisions — without repealing the statute as a whole. Unlike repeal, an amendment keeps the parent Act alive while changing specific parts of it. The effect of an amendment on the rights, liabilities, and proceedings existing at the time of amendment depends on: (a) whether the amendment is prospective or retrospective; and (b) whether it affects substantive rights or merely procedural rules.

Key Points

- An amendment does not repeal the Act — it modifies specific provisions. The rest of the Act remains in full force.
- Prospective Amendments: Apply only to acts, transactions, and rights arising AFTER the amendment. This is the general rule.
- Retrospective Amendments: Apply to past acts, transactions, or proceedings as well. Requires express language — cannot be implied. For penal statutes, retrospective amendments imposing greater punishment are prohibited by Article 20(1).
- Substantive Amendments: Alter existing rights and liabilities — generally prospective only.
- Procedural Amendments: Change the procedure for enforcing existing rights — may apply to pending proceedings as well, unless the court concludes that applying the new procedure would cause injustice.
- When an Act is amended and re-read as amended: the Act is read as if the amendment was always part of it (for prospective operation).
- GCA Section 21: The power to make an Act includes the power to amend it — an amendment is an exercise of the same legislative power as the original enactment.

Types of Amendments

- Addition: New sections or sub-sections are inserted into the Act.
- Deletion: Existing sections or sub-sections are removed.
- Substitution: Existing provisions are replaced with new ones.
- Explanation: Clarificatory amendments — often held to be retrospective even without express words.

📌 **Example:** The Consumer Protection Act 1986 was amended in 2019 to include e-commerce transactions. The amendment applies prospectively — it does not cover online purchases made before the 2019 amendment came into force.

⚖️ **Case:** Commissioner of Income Tax v. Vatika Township Pvt. Ltd. (2014): The Supreme Court held that a substantive amendment affecting existing rights is presumed to be prospective. A retrospective amendment requires either express language or necessary implication from the context.

⚖️ **Case:** State of Rajasthan v. Mangilal (1999): The SC held that an amendment to a procedural provision applies to pending proceedings — unless applying it would work injustice to a party who had relied on the earlier procedure.

📌 **KEY RULE:** Amendment = Modification, not death. Substantive amendment = Prospective (protects accrued rights). Procedural amendment = May apply to pending cases. Retrospective amendment = Express words needed. Penal retrospective amendment = Prohibited (Art. 20(1)).

💡 **TIP:** Appeared as Part A in Jul/Aug 2025 (Q8 — 'Amendments'). The distinction between amendment (modifies) and repeal (kills) is a classic exam trap. Also distinguish: substantive (prospective) vs procedural (may be retrospective) amendments.

3. Implied Repeal ★★★★★

Definition

Implied repeal occurs when a later statute, without expressly repealing an earlier statute, is so inconsistent and repugnant to the earlier Act that both cannot stand together. In such a case, the later Act is taken to have impliedly repealed the earlier Act to the extent of the inconsistency — based on the principle that Parliament, by enacting a later Act on the same subject, intended to supersede the earlier law.

Key Points

- Express repeal: Parliament explicitly states 'The XYZ Act is hereby repealed.' Implied repeal: Parliament says nothing about repeal but enacts an inconsistent later statute.
- Conditions for implied repeal: (1) Both statutes cover the same subject matter or field; (2) The provisions of the later Act are irreconcilably inconsistent with the earlier Act — both cannot operate simultaneously.
- Courts do NOT favour implied repeal — it is a doctrine of last resort. Courts first attempt harmonious construction (Unit III). Only if harmonisation is impossible is implied repeal inferred.
- Where both statutes can operate in their respective spheres — even on the same general subject — there is no implied repeal.
- Later special Act impliedly repeals earlier general Act on the same specific subject (Generalia Specialibus Non Derogant).
- Section 6 GCA applies to implied repeal as well as express repeal — savings are preserved.

📌 **Example:** If the Motor Vehicles Act 1988 provides that all road transport permits must be renewed every 5 years, and a later Road Transport Authority Act 2005 provides that all permits are permanent and non-renewable, the later Act impliedly repeals the renewal provision of the earlier Act to the extent of inconsistency.

⚖️ **Case:** Bhikaji Narain Dhakras v. State of MP (1955): The Supreme Court held that the doctrine of implied repeal operates where a later legislation is repugnant to and inconsistent with an earlier enactment — but only to the extent of the repugnancy.

⚖️ **Case:** Rayala Corporation v. Director of Enforcement (1970): The Supreme Court held that implied repeal can only be inferred where the two statutes are so repugnant that their simultaneous operation is impossible — a mere difference in scope or method does not suffice.

📌 **KEY RULE: Implied Repeal = Courts' LAST RESORT. Two conditions: (1) Same field; (2) Irreconcilable inconsistency. Courts try harmonious construction FIRST. Only if truly impossible → implied repeal. Section 6 GCA savings apply to implied repeal too.**

💡 **TIP:** Appeared as Part A in Aug/Sep 2021 (Q5 — 'Implied Repeal'). The examiner wants: (1) definition; (2) two conditions; (3) distinction from express repeal; (4) courts prefer harmonious construction first; (5) Section 6 GCA saves.

4. Retrospective Operation of Statutes ★★★★★

Definition

A statute is said to have retrospective (or retroactive) operation when it applies not only to future acts and events but also to past acts, transactions, and rights — events that occurred before the statute came into force. The general presumption is that statutes operate prospectively — they do not affect the past. Retrospective operation requires either express language or necessary implication so strong as to make any other interpretation impossible.

Key Points

- General presumption: All statutes are presumed to be prospective — they govern the future, not the past.
- To rebut the presumption: the statute must use clear, express language (e.g., 'this Act shall be deemed to have come into force from...' or 'this Act shall apply to all acts done on or after...').
- Exceptions — statutes that CAN be retrospective:
 - (a) Procedural statutes: Rules of procedure, court fees, limitation periods — these may apply to pending cases even if the events occurred before the statute.
 - (b) Clarificatory/Explanatory statutes: Statutes that merely clarify an existing legal position are often held to be retrospective.
 - (c) Statutes reducing penalties: A statute reducing a punishment may be applied retrospectively — it benefits the accused.
- Statutes that CANNOT be retrospective (without express words):
 - (a) Penal statutes imposing greater punishment — prohibited by Article 20(1) of the Constitution.
 - (b) Statutes affecting vested rights in property.
 - (c) Taxing statutes levying tax on past transactions — no retrospective taxation without clear language.
- Constitutional anchor: Article 20(1) — 'No person shall be convicted of any offence except for violation of a law in force at the time of commission of the act, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.'

🔴 **Example:** If Parliament enacts a new Prevention of Money Laundering Act in 2024 and declares that it applies to transactions from 2015 onwards, this is retrospective. For civil/regulatory matters, this may be valid with express language. For penal matters, this would be unconstitutional under Article 20(1).

⚖️ **Case:** Kedar Nath Singh v. State of West Bengal (1953): The Supreme Court held that Article 20(1) is an absolute constitutional bar on retrospective penal legislation. No one can be convicted for an act that was not an offence when it was committed.

⚖️ **Case:** Gajapati Narayan Deo v. State of Orissa (1954): The SC held that unless Parliament expressly states retrospective effect, legislation is presumed to operate prospectively. The Abolition of Zamindaris Act was challenged — SC held it was prospective in its effects on existing rights.

⚖️ **Case:** Maria Cristina v. Commissioner (1935): Procedural statutes can be retrospective — they apply to pending proceedings even if the events occurred earlier.

📌 **KEY RULE:** Prospective = Rule. Retrospective = Exception (needs express words). Art. 20(1) = absolute bar on retrospective PENAL law. Procedural statutes = CAN be retrospective. Substantive rights statutes = CANNOT without express words.

💡 **TIP:** Appeared as Part A in Nov/Dec 2022 (Q6). Also the basis of the 'public smoking on 31-3-2020' problem (Unit II Part C) and the 'repeal mid-trial' problem (Unit V Part C). Know the constitutional anchor — Article 20(1) — and cite Kedar Nath Singh.

5. Substantive Law and Procedural Law — Distinction ★★★★★

Definition

Substantive law defines rights, duties, obligations, and liabilities — it determines what the law IS on any given subject. Procedural law (also called adjective law) lays down the rules and processes by which substantive rights are enforced and remedies obtained before courts and tribunals. The distinction between substantive and procedural law is critical because different rules of interpretation apply to each.

Key Points — Substantive Law

- Defines the content of legal rights and obligations (e.g., right to property, duty not to commit murder, liability to pay tax).
- Creates, modifies, or extinguishes rights and liabilities.
- Examples: Indian Penal Code (defines offences and punishments), Indian Contract Act (defines rights and obligations in contracts), Income Tax Act (creates tax liability).
- Interpretation: Penal substantive provisions = strictly construed. Welfare substantive provisions = beneficially construed.
- Retrospective operation: Substantive statutes affecting vested rights are presumed prospective. Those imposing criminal liability are constitutionally barred from being retrospective (Article 20(1)).

Key Points — Procedural Law

- Lays down the rules for enforcing rights before courts — jurisdiction, pleading, service of process, evidence, limitation, appeals, execution of decrees.
- Examples: Code of Civil Procedure 1908, Code of Criminal Procedure 1973, Indian Evidence Act 1872, Limitation Act 1963.
- Interpretation: Procedural provisions are interpreted liberally — courts aim to achieve justice, not to trap litigants in technicalities.
- Retrospective operation: Procedural statutes can generally apply to pending proceedings — changing the procedure does not take away accrued rights, it merely changes how they are enforced.
- Exception: A procedural change that effectively extinguishes a substantive right (e.g., a new limitation period that bars an existing claim immediately) is treated as substantive — and is presumed prospective.

Tests to Distinguish Substantive from Procedural

- Test 1 — Does it create a new right or obligation, OR does it only regulate the manner of enforcing an existing one? If former = substantive; if latter = procedural.
- Test 2 — Does the provision define liability OR does it prescribe the forum/method for enforcing liability? Liability = substantive; forum/method = procedural.
- Test 3 — Would retrospective application destroy a vested right OR merely change the way a right is pursued? Destroys right = substantive; changes pursuit = procedural.

📌 **Example:** The Limitation Act 1963 is procedural — it prescribes time limits for filing suits. A new limitation period applies to pending suits (prospectively from the date of the amendment). However, if the new limitation period is so short that it immediately bars an existing claim, it is treated as substantive and applies only to future claims.

⚖️ **Case:** Maria Cristina v. Commissioner (1935): Procedural statutes are retrospective — they apply to all pending proceedings, including those commenced before the statute.

⚖️ **Case:** Hoosein Kasam Dada v. State of MP (1953): The Supreme Court held that a procedural provision requiring payment of court fees cannot be applied retrospectively if it would deprive an existing right — treating it as substantive in effect.

📌 **KEY RULE:** Substantive = What the law IS (rights, liabilities) → Generally PROSPECTIVE. Procedural = How rights are ENFORCED → May be RETROSPECTIVE. The Sting: A 'procedural'

provision that actually destroys a substantive right is treated as substantive. Appeared as Part A in Aug/Sep 2024 and Dec 2020.

 **TIP:** The distinction is tested both as Part A and as the basis of Part B essay (Aug/Sep 2021 Q12 — 'Distinguish between methods of interpreting substantive and procedural laws'). Three tests above are gold for exam answers.

6. Parent Legislation vs. Subordinate Legislation ★★★★★

Definition

Parent legislation (also called primary legislation) is an Act of Parliament or a State Legislature — the supreme form of domestic law. Subordinate legislation (also called delegated or secondary legislation) is law made by an authority other than Parliament, under powers delegated by the parent Act. It includes Rules, Regulations, Bye-laws, Notifications, and Orders made under the authority of a statute.

Key Points — Parent Legislation

- Enacted directly by Parliament or the State Legislature.
- Derives authority from the Constitution (Articles 107–122, 196–212).
- Cannot be invalidated unless unconstitutional.
- Examples: Indian Penal Code, Consumer Protection Act, Income Tax Act.

Key Points — Subordinate Legislation

- Enacted by an executive authority (Ministry, Board, Local Authority) under powers delegated by the parent Act.
- Must remain within the scope of the parent Act — it is ULTRA VIRES (beyond powers) if it exceeds the authority granted.
- Examples: Rules made under the IPC (Prison Rules), Regulations under SEBI Act, Bye-laws under a Municipal Act.
- Three types: (a) Executive Orders/Notifications; (b) Rules and Regulations; (c) Bye-laws made by local bodies.

Conflict Resolution — How Inconsistency is Resolved

- Rule 1 — Parent Always Prevails: Where subordinate legislation conflicts with the parent Act, the parent Act prevails and the subordinate legislation is ultra vires to the extent of inconsistency.
- Rule 2 — Harmonious Construction: Courts first attempt to read the Rule/Regulation consistently with the Act. Only if harmonisation fails is the Rule struck down.
- Rule 3 — Ultra Vires Doctrine: Subordinate legislation that exceeds the scope of the enabling power in the parent Act is struck down as ultra vires.
- Rule 4 — Procedural Ultra Vires: If the subordinate legislation was not made following the prescribed procedure (e.g., failure to consult a required body), it may be invalidated even if its content is within scope.
- Rule 5 — Unreasonableness: Subordinate legislation that is manifestly unreasonable, arbitrary, or discriminatory can be struck down by courts — even if technically within the enabling power.

 **Example:** If the Consumer Protection Act empowers the Central Government to make Rules 'for the purpose of this Act,' a Rule that extends liability beyond what the Act contemplates is ultra vires. The Act's purpose defines the boundary of the Rule-making power.

⚖️ **Case:** Institute of Chartered Accountants v. Price Waterhouse (1997): The Supreme Court held that subordinate legislation must be strictly intra vires (within the powers granted by) the parent Act. Any provision of the subordinate legislation that exceeds or conflicts with the parent Act is void.

⚖️ **Case:** Dwarka Prasad Laxmi Narain v. State of UP (1954): Rules made under an Act that imposed conditions beyond what the Act authorised were struck down as ultra vires the parent Act.

📌 **KEY RULE:** Parent Act > Subordinate Legislation. ALWAYS. Ultra vires test: Does the Rule exceed the scope of the enabling power in the Act? If yes → void. If in doubt → harmonious construction. Appeared in Aug/Sep 2024 as Part B Q12.

💡 **TIP:** 'Parent Legislation' appeared directly as Part A in Jul/Aug 2025 (Q6). The examiner wants: (1) definition of parent vs. subordinate; (2) five methods of conflict resolution; (3) ultra vires doctrine with a case.

7. Fictions in Law ★★☆☆☆

Definition

A legal fiction is a rule of law that assumes the existence of a fact that is known to be untrue — or not known to be true — and gives it legal effect as if it were true. Legal fictions are used by the legislature and courts to achieve practical justice, extend existing legal principles to new situations, or avoid technical difficulties that would otherwise arise.

Key Points

- A legal fiction is always introduced by words such as 'shall be deemed to be,' 'as if,' or 'shall be treated as' in a statute.
- The fiction extends only as far as its purpose requires — courts will not extend a fiction beyond what the legislature intended.
- Fictions are strictly construed — the court will not use a fiction to achieve a result the legislature did not intend.
- Types: Statutory fictions (created by Parliament) and judicial fictions (created by courts, e.g., the fiction that a corporation is a legal person).
- Common examples in Indian law: Section 27 GCA — service by post is 'deemed' to have taken place at the normal delivery time. Section 32 Indian Evidence Act — dying declaration is 'deemed' to be relevant even though the declarant cannot be cross-examined.

🔗 **Example:** Under the Limitation Act, a person under disability is 'deemed' not to have been served with notice until the disability is removed — even if the notice was actually served during the disability. This is a statutory fiction used to protect persons under legal disability.

⚖️ **Case:** East End Dwellings v. Finsbury Borough Council (1952): Lord Asquith stated the classic rule on fictions: 'If you are bidden to treat an imaginary state of affairs as real, you must also imagine as real the consequences and incidents which, if the state of affairs had actually existed, must inevitably have flowed from or accompanied it.'

📌 **KEY RULE:** Fiction = Assume X is true even though it may not be. Fiction extends ONLY as far as its purpose requires — no further. Look for 'deemed to be,' 'as if,' 'treated as' in statutes. Appeared as Part A in Aug/Sep 2021 (Q8).

💡 **TIP:** Fictions carry fewer marks because they are narrower in scope. Keep this answer focused: definition, key statutory words, scope rule, East End Dwellings case, two examples. Do not pad.

8. Amendments — Detailed Treatment ★★★★★

Definition

An amendment to a statute is a formal legislative modification of its existing provisions — through insertion, deletion, or substitution of words, sections, or schedules — without abrogating the statute as a whole. Amendments allow Parliament to update, correct, expand, or restrict the law in response to changing social, economic, or judicial developments.

Key Points

- An amendment changes specific provisions — the rest of the Act remains fully operative.
- Post-amendment, the Act is read as if it always contained the amended provisions (for prospective purposes).
- If two versions of the same section exist (pre and post amendment), the later version prevails for acts occurring after the amendment's commencement.
- Declaratory / Clarificatory Amendments: Parliament sometimes amends a statute to clarify what the law always was — these are often given retrospective effect even without express words (because they are not changing the law, merely clarifying it).
- Curative Amendments: Made to correct a defect or error in the original Act identified by a court decision.
- Sunset Amendments: Amendments that introduce an expiry date for a provision.
- The effect of an amendment on subordinate legislation: where an Act is amended, subordinate legislation (Rules) made under the old Act continues in force unless it is inconsistent with the amended Act — in which case the amended Act prevails.

📌 **Example:** The Income Tax Act is amended to include a new definition of 'royalty.' The amendment applies from the date specified. Any royalty income earned AFTER that date is assessed under the new definition. Income earned before remains under the old definition.

🏛️ **Case:** Vatika Township v. CIT (2014): The Supreme Court held that a substantive amendment is presumed prospective. A declaratory amendment that merely clarifies the law may be retrospective even without express words.

📌 **KEY RULE:** Amendment ≠ Repeal. Substantive amendment = Prospective. Declaratory amendment = May be retrospective. Check commencement date — amendment applies from that date forward. Subordinate legislation inconsistent with amended Act = ultra vires.

💡 **TIP:** Appeared as Part A in Jul/Aug 2025 (Q8 — 'Amendments'). Distinguish: Amendment (modifies) vs Repeal (kills) vs Re-enactment (kills and replaces). This three-way distinction is tested in Part C problem 3 below.

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. Each carries 15 marks. Write 4–5 pages with headings, sub-headings, and case laws.

Essay 1: Effect of Repeal — Section 6, General Clauses Act, 1897 ★★★★★

(Appeared: Aug/Sep 2024 Q12, Aug/Sep 2018 Q14, Jul/Aug 2019 Q16 [variant], Dec 2020 Q6)

I. Introduction

Every statute has a life cycle — it is born when enacted, lives while operative, and dies when repealed. But the death of a statute raises profound legal questions: What happens to the rights that had accrued under it? What happens to the liabilities incurred? What happens to the trials pending? The common law answer was harsh — repeal wiped the slate clean, extinguishing all legal consequences of the repealed Act. Parliament intervened with Section 6 of the General Clauses Act, 1897 to soften this harshness and provide a comprehensive framework of savings that operate automatically on every repeal.

II. Meaning of Repeal

Repeal is the legislative act of abrogating, rescinding, or annulling an existing statute. It may be:

- Express Repeal: Parliament explicitly states that an earlier Act is repealed (e.g., 'The XYZ Act 1972 is hereby repealed').
- Implied Repeal: A later Act covers the same field and is so inconsistent with the earlier Act that both cannot stand — the earlier is impliedly repealed to the extent of inconsistency.
- Repeal and Re-enactment: Parliament repeals an existing Act and simultaneously enacts a new Act on the same subject — often with modifications. This is the most common legislative method for law reform.

III. Common Law Position — Before Section 6 GCA

At common law, the repeal of a statute had drastic consequences. It was as if the Act had never existed — all rights created by it, all liabilities incurred under it, and all proceedings pending under it were extinguished. This produced grave injustice — an accused could escape conviction, a creditor could lose a debt, and a criminal could avoid punishment simply because Parliament had repealed and replaced the relevant Act.

IV. Section 6 GCA — The Legislative Answer

Section 6 of the General Clauses Act, 1897 fundamentally altered the common law position. It provides that where any Central Act is repealed, unless a different intention appears in the repealing Act, the repeal shall NOT affect:

Saving 1 — Previous Operation

The previous operation of the repealed Act or anything duly done or suffered thereunder is preserved. Acts done under the repealed Act — contracts entered, orders made, licences granted — remain valid.

Saving 2 — Accrued Rights

Any right, privilege, obligation, or liability already acquired, accrued, or incurred under the repealed Act survives. A creditor who had a right to sue under the repealed Act retains that right. A person who had incurred a tax liability under the repealed Act remains liable.

🔑 **Case:** *Kolhapur Canesugar Works v. Union of India* (2000): The Supreme Court held that a tax liability that had crystallised before the repeal of the taxing statute survived the repeal by operation of Section 6 GCA.

Saving 3 — Pending Investigations and Proceedings

Any investigation, legal proceeding, or remedy in respect of accrued rights/liabilities is preserved. A pending criminal trial, a pending civil suit, a pending regulatory investigation — all continue as if the Act

had not been repealed.

⚖️ **Case:** State of Punjab v. Mohar Singh Pratap Singh (1955): The SC held that Section 6 GCA saves pending criminal proceedings. The trial of an accused for an offence under a repealed Act continues under the repealed Act's provisions.

Saving 4 — Imposed Penalties and Punishments

Any penalty, forfeiture, or punishment incurred in respect of an offence committed against the repealed Act survives. A conviction already recorded and a sentence already imposed remain valid and enforceable.

Saving 5 — Institution of New Proceedings

Such investigation, legal proceeding, or remedy may still be INSTITUTED (commenced fresh) after repeal, for acts done before repeal — as if the repealing Act had not been passed.

V. How Section 6 Operates — Key Principles

- Section 6 operates automatically — it does not need to be expressly invoked.
- It applies to ALL Central Acts repealed unless the repealing Act expressly excludes its operation.
- The savings under Section 6 continue — the repealed Act is kept alive for the limited purposes specified.
- Section 6 does NOT revive the repealed Act — it only saves its consequences.

VI. Section 6A — Repeal of the Repealing Act

Where the repealing Act is itself subsequently repealed, Section 6A of the GCA provides that the original Act is NOT thereby revived. The repeal of a repealing Act does not bring back the original. To revive the original Act, Parliament must expressly re-enact it.

VII. Saving Clauses in the Repealing Act

Often, the repealing Act itself contains a saving clause that supplements or modifies the savings under Section 6 GCA. Such clauses may:

- Extend savings beyond what Section 6 provides (e.g., preserving appeals not yet filed).
- Restrict savings (e.g., providing that pending proceedings shall abate).
- Transfer pending proceedings to a new forum or Act.

Where the repealing Act expressly provides for the consequences of repeal, those provisions govern — and Section 6 operates only in the interstices.

VIII. Effect of Repeal on Subordinate Legislation

When a parent Act is repealed, Rules, Regulations, and Notifications made under it also fall — they cannot survive the death of the enabling Act, unless the repealing Act or a saving clause expressly preserves them. This is a critical distinction from the saving of rights and proceedings under Section 6 GCA.

⚖️ **Case:** West Bengal v. UOI (1963): The Supreme Court held that subordinate legislation made under a repealed parent Act falls with the parent — unless saved by the repealing Act or a saving clause.

IX. Constitutional and International Basis

Section 6 GCA is grounded in the constitutional principle of rule of law — that rights once lawfully accrued cannot be arbitrarily extinguished. Article 14 (equality before the law) and Article 21 (right to life

and personal liberty) support the position that pending criminal trials must continue and that persons cannot escape accountability merely because Parliament replaced one Act with another. Internationally, Article 15 of the ICCPR provides that criminal offences and their penalties are governed by the law in force at the time of commission — consistent with the savings under Section 6 GCA.

X. Conclusion

Section 6 of the General Clauses Act, 1897 is one of the most practically important provisions in Indian statute law. It transforms the common law position — from one where repeal destroys everything to one where repeal destroys only the future operation of the statute, while preserving all its past consequences. It is the legislative guarantee that the rule of law endures even when the law itself is changed — that rights, liabilities, and proceedings survive the parliamentary act of repeal, and that justice is not defeated by the mechanics of legislative reform.

Essay 2: Conflict Between Parent Legislation and Subordinate Legislation — How is it Resolved? ★★★★★

(Appeared: Aug/Sep 2024 Q12, Jul/Aug 2025 — Part B framework)

I. Introduction

Modern governance is characterised by the delegation of legislative power. Parliament, unable to legislate on every detail, grants broad enabling powers to the executive — empowering Ministries, Boards, and Authorities to make Rules, Regulations, and Bye-laws to implement the parent Act. This delegation is essential for practical governance. But it creates a risk: the subordinate law-maker may exceed the authority granted, conflict with the parent Act, or use the delegated power for purposes other than those the parent Act intended. When this happens, a conflict between parent legislation and subordinate legislation arises — and courts must resolve it. This essay examines the principles and methods by which such conflicts are resolved.

II. Nature of Subordinate Legislation

Subordinate legislation is law made by an authority other than Parliament or a State Legislature, under powers expressly delegated by the parent Act. It includes:

- Rules: Made by the Central or State Government under a parent Act (e.g., Income Tax Rules under the Income Tax Act).
- Regulations: Made by statutory bodies (e.g., SEBI Regulations under the SEBI Act).
- Bye-laws: Made by local authorities (e.g., Municipal Corporation Bye-laws under a Municipal Act).
- Notifications and Orders: Executive instruments made under specific powers in the parent Act.

III. The Ultra Vires Doctrine — The Primary Rule

The fundamental rule is simple: subordinate legislation that exceeds the scope of the enabling power granted by the parent Act is ultra vires (beyond powers) — and therefore void ab initio (void from the beginning).

Parent legislation always prevails. Subordinate legislation cannot override, modify, or contradict the parent Act. It is the servant, not the master, of the enabling Act.

🏛️ **Case:** *Institute of Chartered Accountants of India v. Price Waterhouse* (1997): The Supreme Court held that all subordinate legislation must be strictly intra vires the parent Act. Any provision that exceeds the enabling power is void to the extent of the excess.

IV. Methods of Resolving Conflicts

Method 1 — Harmonious Construction (First Resort)

Courts do not rush to strike down subordinate legislation. The first step is always to attempt harmonious construction — to read the Rule or Regulation consistently with the parent Act, giving effect to both wherever possible.

🏛️ **Case:** *CIT v. Hindustan Bulk Carriers* (2003): Courts must attempt harmonious construction between the Act and Rules made under it — striking down a Rule is the last resort.

Method 2 — Ultra Vires Test (Content)

If harmonious construction fails, the court applies the ultra vires test: does the Rule exceed the enabling power granted by the parent Act?

- Substantive ultra vires: The content of the Rule is beyond what the parent Act permits.

- Procedural ultra vires: The Rule was made without following the prescribed procedure (e.g., failure to consult a required body, failure to lay before Parliament).
- Effect: The Rule is void to the extent of the excess. Valid parts of the Rule continue if severable.

⚖️ **Case:** Dwarka Prasad Laxmi Narain v. State of UP (1954): The Supreme Court struck down Rules that imposed conditions beyond what the parent Act authorised — they were ultra vires the enabling provision.

Method 3 — Reasonableness Test

Even where a Rule is technically within the enabling power, it may be struck down if it is manifestly arbitrary, unreasonable, or discriminatory — on the ground that Parliament cannot have intended to delegate the power to make unreasonable law.

⚖️ **Case:** Kruse v. Johnson (1898): Lord Russell — bye-laws are invalid if they are 'manifestly unreasonable' — oppressive or capricious in their operation.

Method 4 — Specific Rule Prevails Over General Rule

Where a specific provision in the parent Act addresses a particular matter, and a Rule purports to deal with the same matter differently, the specific provision of the parent Act prevails — *Generalia Specialibus Non Derogant*.

Method 5 — Parent Act Determines the Scope of the Enabling Power

The enabling power in the parent Act is the outer limit of subordinate legislation. Courts read the enabling provision strictly — the executive cannot use it to achieve purposes the parent Act did not contemplate.

⚖️ **Case:** R v. Burah (1878): The Privy Council held that the legislature cannot delegate powers it does not itself possess — and the executive can only exercise powers specifically granted.

V. Subordinate Legislation and Fundamental Rights

Subordinate legislation can also be challenged on the ground that it violates fundamental rights guaranteed by the Constitution. Unlike the parent Act (which enjoys a presumption of constitutionality), subordinate legislation is more vulnerable — it is executive action, not parliamentary action, and must independently satisfy Article 14 (equality), Article 19 (freedoms), and other fundamental rights guarantees.

⚖️ **Case:** Bishambhar Dayal Chandra Mohan v. State of UP (1982): The Supreme Court held that subordinate legislation that violates fundamental rights is void — the fact that the parent Act is valid does not validate invalid subordinate legislation.

VI. Effect of Repeal of Parent Act on Subordinate Legislation

When the parent Act is repealed, the subordinate legislation made under it also falls — unless the repealing Act expressly saves it. Unlike the saving of rights and proceedings under Section 6 GCA, subordinate legislation is not automatically saved — it requires an express provision.

VII. Constitutional and International Basis

The doctrine of ultra vires in subordinate legislation reflects the constitutional principle of separation of powers — Parliament legislates, the executive implements. When the executive exceeds its implementing role and effectively legislates beyond the parent Act, it usurps Parliament's function — which the Constitution does not permit. Article 13(3)(a) of the Constitution defines 'law' to include 'order, bye-law, rule, regulation, notification' — and Article 13(2) declares that any law that takes away or abridges fundamental rights shall be void.

VIII. Conclusion

The resolution of conflicts between parent legislation and subordinate legislation is governed by a clear hierarchy: the parent Act is supreme, and subordinate legislation must operate strictly within its authority. Courts resolve conflicts first through harmonious construction, then through the ultra vires doctrine, and finally through the fundamental rights framework. This hierarchy ensures that the delegation of legislative power — essential for modern governance — remains constitutionally bounded and democratically accountable.

Essay 3: Distinction Between Substantive and Procedural Law — Interpretation



(Appeared: Aug/Sep 2021 Q12, Aug/Sep 2024 Q7 Part A, Dec 2020 Q7 Part A)

I. Introduction

One of the most practically significant distinctions in statutory interpretation is between substantive law and procedural law. The distinction determines whether a new statute applies to past events, pending proceedings, or only to future acts. It determines the rule of construction — strict for penal substantive provisions, liberal for procedural provisions. It determines whether accrued rights are protected. It has profound implications for access to justice, legal certainty, and constitutional rights. This essay examines the distinction in depth, the tests used to draw it, and the different rules of interpretation that flow from each category.

II. Substantive Law — Definition and Characteristics

Substantive law is the body of law that defines rights, duties, obligations, and liabilities — it determines what the law IS on any given matter. It creates, modifies, or extinguishes legal rights and obligations.

- Characteristics: Creates new rights or obligations; defines the content of legal relationships; determines liability; prescribes punishments (in criminal law).
- Examples: Indian Penal Code 1860 (defines offences and punishments); Indian Contract Act 1872 (defines rights and obligations in contracts); Income Tax Act 1961 (creates tax liability); Consumer Protection Act 2019 (creates consumer rights).
- Interpretation: Penal substantive provisions = strictly construed; beneficial/welfare provisions = liberally construed.
- Retrospective operation: Generally PROSPECTIVE. Cannot be retrospective for penal provisions (Article 20(1)). Cannot be retrospective for provisions affecting vested property rights — without express language.

III. Procedural Law — Definition and Characteristics

Procedural law (also called adjective law or adjectival law) is the body of rules that prescribes the method and manner in which substantive rights are enforced before courts and tribunals. It deals with how — not what.

- Characteristics: Regulates the conduct of litigation; prescribes forms, time limits, jurisdiction, pleadings, service of process, evidence rules, and appeals; does not create new rights — only facilitates enforcement of existing ones.
- Examples: Code of Civil Procedure 1908 (procedure for civil suits); Code of Criminal Procedure 1973 (procedure for criminal trials); Indian Evidence Act 1872 (rules of evidence); Limitation Act 1963 (time limits for suits).
- Interpretation: Liberally construed — courts aim to achieve justice, not trap litigants in technicalities.
- Retrospective operation: CAN apply to pending proceedings — changing how a right is enforced does not destroy the right.

IV. Tests for Distinguishing Substantive from Procedural

Test 1 — The Vested Rights Test

Does the provision create, modify, or extinguish a VESTED RIGHT? If yes = substantive. If it merely changes the mode of enforcement of an existing right = procedural.

⚖️ **Case:** Hoosein Kasam Dada v. State of MP (1953): A provision requiring payment of court fees before filing a suit — technically procedural — was held to be substantive in effect because it made it financially impossible for certain litigants to enforce existing rights. Applied prospectively.

Test 2 — The Subject Matter Test

Is the provision about LIABILITY (who owes what to whom) or about ENFORCEMENT (how that liability is proved and enforced)? Liability = substantive; enforcement = procedural.

Test 3 — The Retrospective Application Test

Would applying the provision to past events destroy an accrued right or merely change the procedure for pursuing it? Destroys right = substantive (presumed prospective). Changes procedure = procedural (may apply retrospectively to pending cases).

⚖️ **Case:** Maria Cristina v. Commissioner (1935): A change in the limitation period for appeals is procedural — it applies to pending proceedings. But if the new limitation period immediately bars an existing claim (giving it no time to be filed), it is treated as substantive and applied prospectively.

Test 4 — The Legislative Intent Test

What did Parliament intend? If the provision was enacted to protect individuals from liability (not just to regulate procedure), it is substantive. Look to the SoOR, the Preamble, and the context of the provision.

V. Key Differences — Comparative Table

Feature	Substantive Law	Procedural Law
Focus	WHAT the law is (rights/duties)	HOW rights are enforced
Creates	Rights, obligations, liabilities	Forums, forms, time limits
Interpretation	Strict (penal) / Liberal (welfare)	Liberal — favour justice
Retrospective?	Presumed PROSPECTIVE	Can apply to pending cases
Constitutional anchor	Art. 20(1) — no retrospective penal	Art. 21 — access to justice
Examples	IPC, Contract Act, Tax Acts	CPC, CrPC, Evidence Act, Limitation Act
Leading case	Kedar Nath (1953) — Art. 20(1)	Maria Cristina (1935) — procedural retro

VI. The Grey Zone — Provisions That Are Both

Some provisions defy neat classification — they have both substantive and procedural characteristics. Courts in these cases apply a pragmatic approach: they ask which aspect predominates, and whether applying the provision retrospectively would cause injustice. If the retrospective application would effectively destroy a party's existing right, the provision is treated as substantive — regardless of its technical label.

VII. Constitutional and International Basis

The distinction between substantive and procedural law has deep constitutional roots. Article 20(1) expressly protects against retrospective substantive criminal law. Article 21 (right to life and personal liberty) has been interpreted to include the right to a fair procedure — ensuring that even procedural changes do not arbitrarily deprive persons of their liberty. Article 14 (equality before the law) requires that procedural changes be applied equally to all similarly situated persons. Internationally, Article 14 of

the ICCPR (right to a fair trial) and Article 15 (no retrospective criminal law) reflect these constitutional values in international law.

VIII. Conclusion

The distinction between substantive and procedural law is one of the most practically important in statutory interpretation. It determines when a statute applies (prospectively or retrospectively), how it is interpreted (strictly or liberally), and what constitutional protections apply. Courts navigate this distinction with care — seeking to give effect to new law efficiently, while protecting the vested rights and reasonable expectations of those who relied on the old. The rule of thumb is clear: change the law going forward as Parliament directs; protect what has already been earned or fairly relied upon.

PART C — PROBLEM QUESTIONS (10 Marks Each — IRAC Method)

Answer any TWO. Each carries 10 marks. Strict IRAC: Issue → Rule → Application → Conclusion.

Problem 1: Act Repealed While Criminal Trial is Pending — Effect on Trial



Question: A law was enacted by the legislature in 2009. Mr. X was charged for committing an offence punishable under the said Act in 2012. When the trial against X is pending, the Act of 2009 is repealed in 2013. What is the effect on the trial against X? Discuss. (Aug/Sep 2018 Q14, Aug/Sep 2021 Q16, Dec 2020 scenario)

ISSUE

Whether the repeal of the Act of 2009 in 2013 — while the criminal trial of X for an offence committed in 2012 under that Act is pending — abates (ends) the pending trial, or whether the trial continues.

RULE

- Primary Rule — Section 6, General Clauses Act, 1897: Where a Central Act is repealed, the repeal shall NOT affect any investigation, legal proceeding, or remedy in respect of any right, privilege, obligation, or liability acquired, accrued, or incurred under the repealed Act. Such investigation or legal proceeding may be continued as if the repealing Act had not been passed.
- Saving 3 of Section 6 GCA: Pending legal proceedings (including criminal trials) survive repeal.
- Saving 4 of Section 6 GCA: Penalties incurred for offences committed against the repealed Act survive repeal.
- Section 6 applies automatically — the repealing Act need not expressly preserve the trial.
- Exception: If the repealing Act expressly provides that pending proceedings shall abate, then they do abate — Section 6 is displaced by the contrary intention in the repealing Act.
- Article 20(1) of the Constitution: Protects the accused from being tried for conduct that was not an offence when committed — but does NOT protect an accused from being tried for an offence that WAS an offence when committed (2012), merely because the law was later repealed (2013).

APPLICATION

The timeline is clear:

- 2009: Act enacted.
- 2012: X commits the offence — the Act was in force. X was liable at the time of commission.
- 2013: Act repealed — pending trial in progress.

When the Act of 2009 was repealed in 2013, Section 6 GCA automatically operated to save the pending trial. The offence was committed in 2012 — when the Act was fully in force. X's criminal liability had already been 'incurred' at the moment of commission. Section 6 Saving 3 preserves the pending legal proceeding. Section 6 Saving 4 preserves the penalty that X is liable to face.

The trial MUST CONTINUE as if the Act of 2009 had not been repealed. The court that is trying X continues to apply the repealed Act's provisions for the purpose of this trial.

X cannot escape trial simply because Parliament chose to repeal and replace the Act after X had committed the offence. Article 20(1) does not help X — X is not being tried under a law that did not exist when X acted; X is being tried under a law that was in full force when X acted.

- ⚖️ **Case:** State of Punjab v. Mohar Singh Pratap Singh (1955): The Supreme Court expressly held that Section 6 GCA preserves pending criminal proceedings on repeal. X's trial continues.
- ⚖️ **Case:** Kolhapur Canesugar Works v. Union of India (2000): Section 6 GCA savings apply to all accrued rights and pending proceedings — the repeal does not extinguish them.

CONCLUSION

The repeal of the Act of 2009 in 2013 does NOT affect the pending trial of X. By operation of Section 6 of the General Clauses Act, 1897, the pending criminal trial continues as if the repeal had not occurred. X will be tried, convicted (if guilty), and punished under the provisions of the repealed Act of 2009 — which remains alive for the limited purpose of this trial. The trial court has full jurisdiction to proceed. The only exception would be if the Act of 2013 (repealing Act) expressly provided that pending trials shall abate — which, on the facts given, it does not.

🟡 **KEY FORMULA:** Offence committed while Act was alive + Section 6 GCA = Trial CONTINUES. Article 20(1) does not help accused — no ex post facto issue since the law existed when the offence was committed. Section 6 GCA Savings 3 and 4 are the anchors.

Problem 2: Probation of Offenders Act — Accused Claims Benefit After Conviction ★★★★★

Question: R was charged for committing theft. While the prosecution was on, the Government passed the Probation of Offenders Act. R was found guilty, but R wants to claim benefit of the said Act. The government objected on the ground of ex post facto law. Decide. (Jul/Aug 2025 Q13)

ISSUE

Whether R, having been found guilty of theft, can claim the benefit of the Probation of Offenders Act (which was passed while the prosecution was ongoing) — i.e., can a law that reduces the consequences of a criminal conviction be applied to a person already convicted?

Two sub-issues:

- Sub-issue 1: Does the Probation of Offenders Act apply to R's case (enacted during pending prosecution)?
- Sub-issue 2: Is the Government's objection that this amounts to ex post facto law (prohibited by Article 20(1)) valid?

RULE

- Article 20(1) of the Constitution: 'No person shall be subjected to a penalty GREATER than that which might have been inflicted under the law in force at the time of the commission of the offence.' This bars retrospective INCREASE in punishment — not retrospective DECREASE.
- Beneficent Retroactivity: A law that reduces punishment or provides a benefit to accused persons is NOT prohibited by Article 20(1). It is in fact consistent with the principle of beneficial construction.
- Probation of Offenders Act: Empowers courts to release offenders on probation of good conduct instead of sentencing them to imprisonment — a benefit, not a penalty.
- Section 6 GCA (Pending Proceedings): The Act was passed while prosecution was pending. Section 6 preserves the prosecution — but the new Act can apply to the outcome (sentence) if it benefits the accused.
- Beneficial Construction: A welfare statute like the Probation of Offenders Act must be read broadly, in favour of the offender, to achieve its rehabilitative purpose.

APPLICATION

R was convicted of theft. The Probation of Offenders Act was enacted during the pendency of R's prosecution. R claims its benefit at the sentencing stage.

The Government's objection — that applying the new Act is 'ex post facto' — is MISCONCEIVED. Article 20(1) prohibits retrospective application of a law that imposes a GREATER penalty than what was in force at the time of the offence. The Probation of Offenders Act does the opposite — it reduces consequences by allowing release on probation instead of imprisonment. There is no constitutional bar to applying a more lenient law to pending cases.

In fact, the principle of beneficial construction strongly supports R's claim. The Probation of Offenders Act is a welfare and rehabilitative statute — it was enacted to give courts the tool to reform rather than punish offenders. Reading it narrowly to exclude persons whose cases were pending when the Act was passed would defeat its rehabilitative purpose.

The new law is procedural/remedial in nature at the sentencing stage — it changes the consequence of conviction (from imprisonment to probation). Procedural and remedial laws can apply to pending cases.

⚖️ **Case:** Ratan Lal v. State of Punjab (1965): The Supreme Court held that a law providing for lesser punishment or releasing an offender on probation can be applied to pending cases — Article 20(1) only bars GREATER retrospective punishment, not lesser.

⚖️ **Case:** Kedarnath Bajoria v. State of WB (1953): The benefit of a statute reducing punishment applies to all persons who have committed the offence before the statute but who have not yet been sentenced — consistent with beneficent retroactivity.

CONCLUSION

R CAN claim the benefit of the Probation of Offenders Act. The Government's objection based on ex post facto law is INCORRECT. Article 20(1) only prohibits retrospective INCREASE in punishment — not a retrospective REDUCTION. The Probation of Offenders Act provides a benefit (release on probation) and is a welfare statute — it should be applied beneficially to R's case. The court may, in its discretion, release R on probation instead of imposing imprisonment, consistent with the Act's rehabilitative purpose.

🟡 **KEY POINT:** Art. 20(1) bars GREATER retrospective punishment — NOT lesser. Probation = benefit, not penalty. Government's objection fails. Cite Ratan Lal v. State of Punjab (1965). Beneficial construction supports R's claim.

Problem 3: Control Act Repealed and Re-enacted Without Modification — Effect on Orders and Rules ★★★★★

Question: A control Act was repealed and re-enacted without modification. What is the effect on orders and rules made under the repealed Act? (Jul/Aug 2019 Q16)

ISSUE

When a parent Act is repealed and immediately re-enacted in the same terms (without modification), what is the effect on:

- (a) Orders and Rules made under the repealed Act — do they survive?
- (b) Pending proceedings under the repealed Act — do they continue?
- (c) Rights and liabilities accrued under the repealed Act — are they preserved?

RULE

- Section 6 GCA — Savings on Repeal: The repeal of the parent Act does NOT automatically destroy orders, rules, rights, or pending proceedings — Section 6 saves them.
- Section 6A GCA: Repeal of the repealing Act does NOT revive the original — but this is irrelevant here since the Act is re-enacted, not merely re-repealed.
- Re-enactment without modification: Where an Act is repealed and re-enacted in the same terms, courts treat the re-enacted Act as a continuation of the original — the law on the subject is deemed to have been continuously in force.
- General Principle — Continuity of Law: Where a parent Act is re-enacted without modification, Rules and Orders made under the original Act are taken to have been made under the re-enacted Act — they survive and continue to operate.
- Saving Clause in Repealing/Re-enacting Act: Most re-enactment statutes contain a transition provision expressly saving rules, orders, and pending proceedings. Where such a provision exists, it governs. Where it does not, Section 6 GCA and the re-enactment doctrine fill the gap.

APPLICATION

The facts: a control Act is repealed and re-enacted WITHOUT modification. This is a common legislative technique — used when Parliament wishes to consolidate or re-number an Act without changing its substance.

Effect on Orders and Rules:

- Since the re-enacted Act is identical in content to the repealed Act, Rules and Orders made under the repealed Act are deemed to have been made under the re-enacted Act — they continue in full force. The re-enactment doctrine treats the law as continuously in force.
- The authority that made the Rules (Ministry, Government) retains the same powers under the re-enacted Act — the Rules' legal basis shifts automatically from the old Act to the new Act.

Effect on Pending Proceedings:

- Section 6 GCA Saving 3 preserves pending proceedings. But here, since the Act is re-enacted identically, the pending proceedings continue under the re-enacted Act's identical provisions — no gap arises.

Effect on Rights and Liabilities:

- Section 6 GCA Saving 2 preserves accrued rights and liabilities. Since the re-enacted Act is identical, these rights and liabilities are also enforceable under the new Act's identical provisions.

🏴󠁧󠁢󠁥󠁮󠁧󠁿 **Case:** State v. P. Kannadasan (1996): The Supreme Court held that where an Act is repealed and re-enacted in substantially the same terms, rules and regulations made under the old Act continue in force under the new Act — the re-enactment is a continuation, not a fresh start.

🏴󠁧󠁢󠁥󠁮󠁧󠁿 **Case:** Teja Singh v. State of PEPSU (1956): Rules made under a repealed Act that is re-enacted continue under the re-enacted Act — since the legislative scheme is unchanged.

CONCLUSION

When a control Act is repealed and re-enacted WITHOUT modification: (1) Rules and Orders made under the repealed Act SURVIVE and continue to operate under the re-enacted Act — they are deemed made under the new Act. (2) Pending proceedings continue — Section 6 GCA preserves them, and the re-enacted Act's identical provisions govern them. (3) Rights and liabilities accrued survive — both under Section 6 GCA and under the re-enacted Act's identical provisions. The repeal and re-enactment without modification is treated as a continuation of the law, not a break. The legal position is as if the Act was never repealed.

🟡 **KEY POINT:** Repeal + Re-enactment (same terms) = CONTINUITY. Rules and Orders SURVIVE — they are deemed made under the new Act. Distinguish: (a) Repeal only (Section 6 saves); (b) Repeal + re-enactment same terms (continuity doctrine + Section 6); (c) Repeal + re-enactment with changes (only consistent Rules survive).

Problem 4: Mr. K Checks Time on Mobile While Driving — Is It an Offence?



Question: The Motor Vehicles Department makes using mobiles while driving an offence. Mr. K while driving his car took out his mobile to check the time. The police charged K for the offence. K wants to challenge. Advise. (Jul/Aug 2025 Q14)

ISSUE

Whether Mr. K's act of taking out his mobile phone to check the time while driving constitutes 'using a mobile phone while driving' — an offence under the Motor Vehicles (mobile phone) regulation.

The legal questions are:

- Issue 1: What is the scope of 'using' a mobile phone — does it include checking the time?
- Issue 2: Which rule of interpretation applies — Literal Rule (narrow reading) or Mischief Rule (purposive reading)?
- Issue 3: Does the strict construction rule for penal provisions assist K?

RULE

- Literal Rule: 'Using mobiles while driving' — 'using' in its ordinary meaning refers to actively operating or utilising the phone's functions. Checking the time is a minimal, momentary use — is it 'using' in the statutory sense?
- Mischief Rule: The mischief addressed by the regulation is driver distraction caused by mobile phone use — which leads to accidents. Any engagement with the phone while driving — including checking the time — can constitute a distraction.
- Strict Construction of Penal Provisions: The regulation creates a criminal/penal offence. Any ambiguity in the definition of the offence must be resolved in favour of the accused (K). If 'using' is ambiguous — does it mean any physical contact with the phone, or only active communication/internet use — the doubt benefits K.
- Ejusdem Generis / Contextual Reading: If the regulation lists specific activities (calling, texting, browsing) and then adds 'or other use,' checking time may fall outside the genus — or within it if distraction is the genus.

APPLICATION

Argument for K — Strict Construction / Literal Rule

K took out the phone only to check the time — a function available on any watch or car dashboard. He did not make a call, send a message, or browse the internet. The ordinary and natural meaning of 'using a mobile phone while driving' refers to engaging with the phone's primary communication functions — not glancing at the time display.

Under the strict construction rule, the offence-creating provision must be read narrowly. If 'checking time' is not clearly and unambiguously within the scope of 'using,' K is entitled to the benefit of the doubt. The statute must speak clearly to impose a criminal penalty.

K can further argue that his act was momentary and minimally distracting — the same as looking at a dashboard clock or a watch.

Argument for Police — Mischief Rule / Purposive

The mischief the regulation addresses is driver distraction. Taking one's hand off the wheel to retrieve a phone from a pocket or bag — even for a second — is a distraction. A person glancing at their mobile

screen (even for the time) is as distracted as one who glances at a text message. The purposive construction would include checking the time within 'using.'

Moreover, if the phone was in use (screen lit, held in hand), this is indistinguishable from any other use of the phone while driving.

Which Argument Prevails?

Since this is a PENAL provision, the strict construction rule requires that ambiguity be resolved in K's favour. Unless the regulation expressly defines 'use' to include any physical interaction with the phone (including checking time), the court should prefer the narrower reading — which does not catch K's conduct.

⚖️ **Case:** Fisher v. Bell (1961): Where a penal statute uses a word with a recognised meaning (here 'use' = active utilisation), the court applies the literal meaning. Merely holding the phone to check the time may not constitute 'using' in the relevant sense.

⚖️ **Case:** Tolaram Relumal v. State of Bombay (1954): Any ambiguity in a penal provision must be resolved in favour of the accused.

CONCLUSION

ADVISE K: K has a STRONG ARGUMENT to challenge the charge. Taking out the mobile phone to check the time is a borderline act that may or may not fall within 'using mobiles while driving' depending on the precise wording of the regulation. K should argue: (1) Literal Rule — 'checking time' is not 'using' the phone for its mobile functions; (2) Strict construction — any doubt in the penal provision must favour K; (3) The mischief (driver distraction) is better addressed by regulating active communication, not momentary glances at a clock-display. K's best defence is that the regulation is ambiguous as applied to his facts — and under the strict construction of penal statutes, the doubt benefits him. However, if the court applies the Mischief Rule, K may be convicted — the outcome will depend on the precise wording of the regulation and the court's interpretive choice.

📌 **KEY POINT:** This problem tests Literal Rule + Strict Construction of Penal Statutes vs. Mischief Rule. The student MUST present BOTH arguments and then conclude that strict construction of penal provisions favours K. Cite Fisher v. Bell + Tolaram Relumal. Show interpretive sophistication — not just one-sided advocacy.

QUICK REVISION SHEET — UNIT V

Top Case Laws — One-Liners

Case / Section / Maxim	One-Line Summary
GCA Section 6	Effect of Repeal — saves pending proceedings, accrued rights, liabilities
GCA Section 6A	Repeal of repealing Act — does not revive original Act
State of Punjab v. Mohar Singh (1955)	Section 6 GCA saves pending proceedings after repeal
Kolhapur Canesugar Works v. UOI (2000)	SC — Section 6 GCA saves liabilities incurred under repealed Act
Rayala Corp v. Director (1970)	Implied Repeal — later inconsistent Act impliedly repeals earlier
Bhikaji Narain Dhakras v. State (1955)	Implied Repeal — doctrine & conditions for application
Kedar Nath v. State of WB (1953)	Art. 20(1) — absolute bar on retrospective penal law
Maria Cristina v. Commr (1935)	Retrospective — procedural statutes can be retrospective
Cape Brandy Syndicate (1921)	Taxing — no implied levy; only clear language
Institute of Chartered Accountants (1997)	Subordinate legislation must be intra vires parent Act

Section 6 GCA — The 5 Savings (MEMORISE)

No.	Saving	Practical Meaning
1	Previous operation of the Act	Acts done before repeal remain valid
2	Accrued rights, privileges, obligations, liabilities	Rights that had crystallised before repeal survive
3	Pending investigations, proceedings, remedies	Pending trials and cases continue after repeal
4	Penalties incurred for offences committed	Convictions and penalties already imposed survive
5	Institution of new proceedings	Fresh prosecution for pre-repeal offences still possible

Substantive vs. Procedural — Quick Comparison

Feature	Substantive	Procedural
What it defines	Rights / liabilities (WHAT)	Enforcement methods (HOW)
Interpretation	Strict (penal) / Liberal (welfare)	Liberal — favour access to justice

Retrospective?	Presumed PROSPECTIVE	Can apply to PENDING cases
Art. 20(1) applies?	YES — penal statutes	NO — not penal
Examples	IPC, Contract Act, Tax Acts	CPC, CrPC, Evidence Act, Limitation Act

Memory Mnemonics

💡 **Section 6 GCA 5 Savings:** 'PARPI' — Previous operation, Accrued rights, Rights in proceedings (pending), Penalties incurred, Institution of new proceedings.

💡 **Repeal types:** 'EIR' — Express, Implied, Repeal-and-Re-enactment. Different consequences for subordinate legislation.

💡 **Implied Repeal conditions:** 'SAMI' — Same field + Absolute Mutual Incompatibility = Implied repeal.

💡 **Substantive vs Procedural:** 'WHAT vs HOW' — Substantive = WHAT the law is. Procedural = HOW it is enforced.

💡 **Retrospective:** 'PPA' — Prospective = Presumption. Past = Needs express words. Penal past = Article 20(1) = Absolutely forbidden.

Trap Questions — Watch Out!

- 'Repeal destroys everything — all trials abate?' — NO. Section 6 GCA saves pending proceedings, accrued rights, and penalties already incurred.
- 'Section 6A revives the original Act when the repealing Act is repealed?' — NO. Section 6A expressly provides that repeal of the repealing Act does NOT revive the original.
- 'Implied repeal occurs whenever two statutes conflict?' — NO. Courts attempt harmonious construction FIRST. Implied repeal is the LAST RESORT — only where irreconcilable inconsistency exists AND both cover the same field.
- 'Procedural statutes are always retrospective?' — MOSTLY but not ALWAYS. If a procedural provision effectively destroys a vested right, it is treated as substantive and applied prospectively.
- 'Article 20(1) protects from all retrospective laws?' — NO. Article 20(1) protects only against retrospective PENAL laws imposing GREATER punishment. A new law reducing punishment CAN be applied retrospectively — and is beneficial (*Ratan Lal v. State of Punjab*).
- 'Rules survive repeal of the parent Act automatically?' — NO. Rules made under a repealed Act generally fall with the parent Act — UNLESS the repealing Act saves them OR the Act is re-enacted in the same terms (continuity doctrine).
- 'Amendment = Repeal?' — NO. Amendment modifies specific provisions; repeal kills the entire Act. Under repeal — Section 6 GCA applies. Under amendment — the rest of the Act continues unchanged.